



# Data Retention and Disposal Process for Human Resources

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## Document Information

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## 1. Purpose

- 1.1. The purpose of this Policy is to ensure that necessary records and documents are adequately protected and maintained and to ensure that records that are no longer needed or are of no value are discarded at the proper time. This policy provides for the systematic review, retention and destruction of documents received or created by the Company in connection with the transaction of official business. This policy covers all records and documents, regardless of physical form (including electronic documents), contains guidelines for how long certain documents should be kept and how records should be destroyed.
- 1.2. It also covers all employees of Ibex Global Solutions Philippines Inc., in knowing their obligations in retaining and disposing of electronic documents - including e-mail, Web files, text files, sound and movie files, PDF documents, and all Microsoft Office or other formatted files.

## 2. Scope

- 2.1. This policy shall apply to the management of office documents that are processed by the Human Resources Department:
  - 2.1.1. Job Application Requirements
  - 2.1.2. Assessment Forms
  - 2.1.3. Employment Requirements
  - 2.1.4. Contract
  - 2.1.5. Application or update of Statutory Benefits
  - 2.1.6. Application or update of Company Benefits
  - 2.1.7. Employee Change Forms (Promotion, Transfers, Special Assignments)
  - 2.1.8. Disciplinary Records / Administrative Cases
  - 2.1.9. Off-boarding Records
- 2.2. This includes documents used, received, transmitted via hard copy and by way of e-mail, web files, text files, sound and video files, digital documents, and all Microsoft Office or other formatted files.

## 3. Roles and Responsibilities

- 3.1. Each department personnel shall be responsible in the proper handling, storekeeping, storage filing, documentation, computer uploads.
- 3.2. Recruitment:
  - 3.2.1. Collection of resume and applicant personal information
  - 3.2.2. Collection of applicant personal information and proof / reference materials
  - 3.2.3. Provide temporary storage until properly endorsed to HRIS
- 3.3. Human Resources Operations (HR Ops):
  - 3.3.1. Disseminate notices and collect proof of acknowledgement
  - 3.3.2. Receive incident reports and collect evidence for investigation
  - 3.3.3. Document disciplinary actions
  - 3.3.4. Collect off-boarding documents
  - 3.3.5. Provide temporary storage until properly endorsed to HRIS
- 3.4. Human Resources Legal Relations (HR LR):
  - 3.4.1. Receive DOLE, NLRC, and Court Orders, Invitations, and other notices;
  - 3.4.2. Collect case files, investigate and document findings;
  - 3.4.3. Process Litigation files/Pleadings;
  - 3.4.4. Retain and store all processed legal documents;
- 3.5. Human Resources Compensation and Benefits (C&B):
  - 3.5.1. Collect and / process statutory benefits applications;

- 3.5.2. Record proof of payment for statutory contributions;
- 3.5.3. Provide temporary storage until properly endorsed to HRIS
- 3.6. Human Resources Information System (HRIS):
  - 3.6.1. Collect physical documents from Recruitment, HR Ops and HR Legal for storage;
  - 3.6.2. Process and record employee movements through ECF;
  - 3.6.3. Provide secured storage for physical documents;
  - 3.6.4. Log documents being received, borrowed and returned;
  - 3.6.5. Monitor storage and endorse for disposal following prescribed timelines;

## 4. Policy

### 4.1. Document Retention

| Department / Owner            | Document                                             | Retention period (Min to Max) |
|-------------------------------|------------------------------------------------------|-------------------------------|
| HR Team/ C&B Team/Recruitment | Employee Records                                     | 10 to 13 years                |
| HR Team                       | Employment and Termination Agreements                | 10 to 13 years                |
| HR Team                       | Records Relating to Promotion, Demotion or Discharge | 10 to 13 years                |
| C&B Team                      | Accident Reports and Worker's Compensation Records   | 5 to 8 years                  |
| Recruitment Team              | Employment Applications                              | 10 to 13 years                |
| C&B Team                      | Statutory Contributions                              | Permanent                     |
| Legal Relations               | Legal Compliance Records                             | Permanent                     |
| Legal Relations               | General Contracts                                    | Permanent                     |
| Legal                         | Litigation files/Pleadings                           | Permanent                     |
| Legal                         | Court Orders                                         | Permanent                     |

### 4.2. Records Disposal

- 4.2.1. Records Disposal shall happen every three years;
- 4.2.2. All physical Documents retained and have expired their minimum retention period shall be prepared by Department / Owner and endorsed to Facilities Team for temporary storage before being endorsed to 3<sup>rd</sup> Party Service Provider for disposal;
- 4.2.3. All Electronic Documents retained and have expired their minimum retention period shall be prepared by Department / Owner and endorsed to IT team for disposal;

### 4.3. Records Retention and Disposal Committee

- 4.3.1. The company shall convene a Records Retention and Disposal Committee to facilitate and or guide the company and its respective departments in the implementation, monitoring, and periodic review of this Policy and compliance by the company with this Policy. The Committee shall include a chair, who will be designated the Company's Records Retention and Disposal Officer. The Committee shall include representatives from all department.

| Department      | Officer               |
|-----------------|-----------------------|
| HR Operations   | HR Director           |
| HRIS and HR C&B | HR Director           |
| Recruitment     | Recruitment Director  |
| Facilities      | Facilities Manager    |
| HR LR           | Patrick Libongco      |
| IT              | IT Associate Director |

### 4.4. Electronic Documents and Records

4.4.1. Electronic documents will be retained as if they were paper documents. Therefore, any electronic files that fall into one of the document types on the above schedule will be maintained for the appropriate amount of time. If a user has sufficient reason to keep an email message, the message should be printed in hard copy and kept in the appropriate file or moved to an “archive” computer file folder. Backup and recovery methods will be tested on a regular basis.

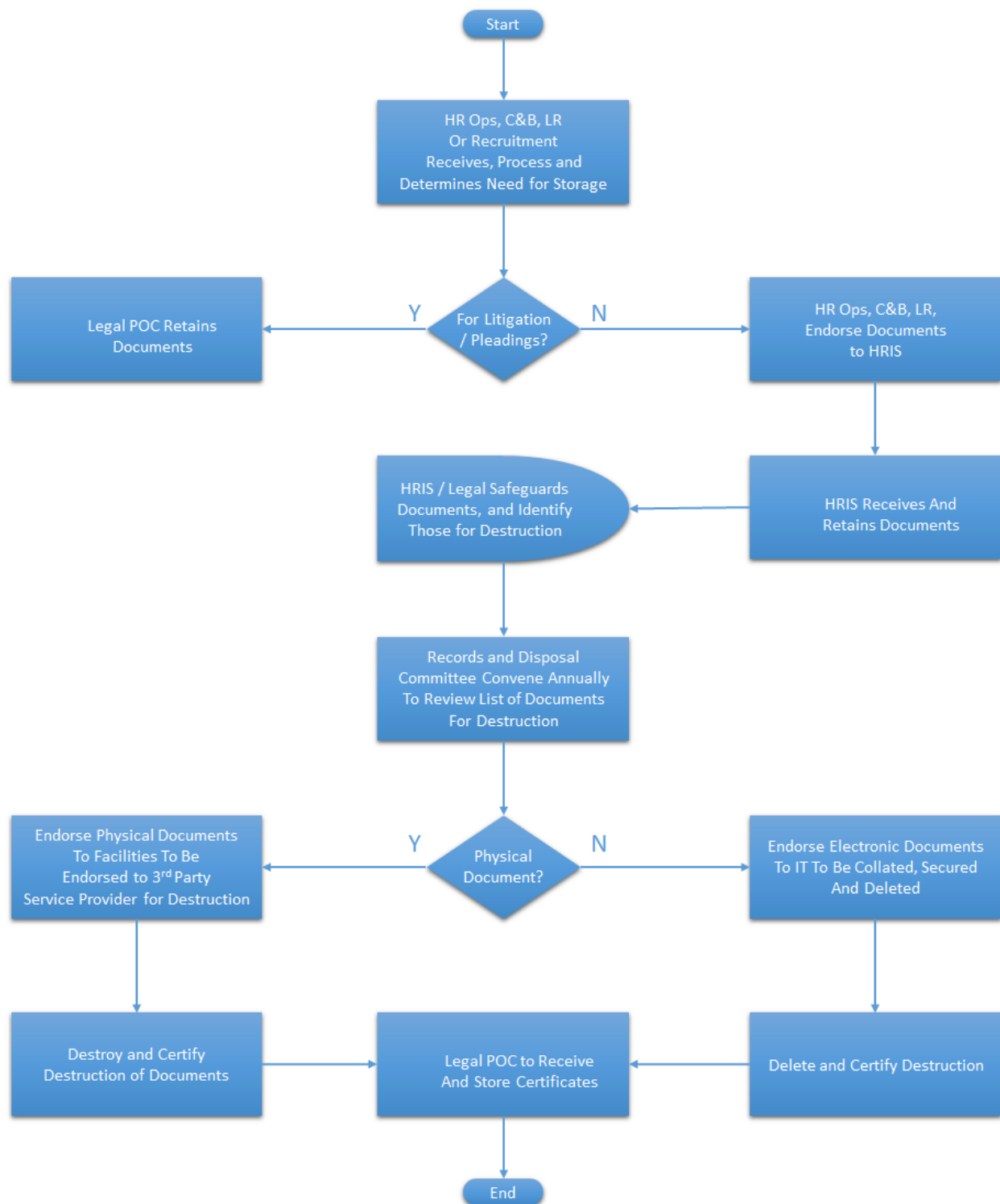
#### **4.5. Process Flow:**

- 4.5.1. The HR Staff / Personnel collects data and physical documents within their scope in compliance to existing physical and logical information security protocols.
- 4.5.2. Each staff member / personnel is responsible for maintaining the integrity and security of the documents they collect and retain.
- 4.5.3. All confidential electronic documents must be kept in secured folders or desktops, or protected with password.
- 4.5.4. All confidential documents shall be kept in locked cabinets or rooms if not being processed.
- 4.5.5. HRIS and HRLR shall submit a list of Documents for disposal to the committee.
- 4.5.6. The Records and Disposal Committee shall convene annually to review the list of documents for disposal.
- 4.5.7. All physical documents for disposal shall be endorsed to the Facilities team;
- 4.5.8. The physical documents shall be endorsed by Facilities to the Document Disposal Service Provider
- 4.5.9. The Document Disposal Service Provider shall collect the documents, record the receipt, process the destruction, and create the Certificate of Disposal.
- 4.5.10. Document destruction will be suspended immediately, upon any indication of an official investigation or when a lawsuit is filed or appears imminent. Destruction will be reinstated upon conclusion of the investigation.
- 4.5.11. All electronic documents shall be endorsed to IT;
- 4.5.12. IT shall collect the electronic documents in a secured folder and process its destruction.
- 4.5.13. IT shall confirm the successful destruction of the Electronic Documents issue a certificate.
- 4.5.14. HR LR shall keep the Certificate of Disposal for record-keeping.

## **5. Enforcement**

- 5.1. Failure on the part of employees to follow this policy can result in possible civil and criminal sanctions against the company and its employees and possible disciplinary action against responsible individuals.

## 6. Flow Chart:



## 7. Revision History

| Version | Date             | Details of Changes                                | Change By             | Reviewed By         | Approved By                     |
|---------|------------------|---------------------------------------------------|-----------------------|---------------------|---------------------------------|
| Draft   | May 13, 2022     | Creation                                          | John Patrick Libongco | Benito Taguibao Jr. | Mel Nagal                       |
| V1.0    | June 11, 2022    | Updated                                           | Benito Taguibao Jr.   | Mel Nagal           | Carrie Nelson and Thea Prospero |
| V1.1    | January 31, 2023 | Updated                                           | Benito Taguibao Jr.   | Mel Nagal           | Carrie Nelson                   |
| V1.2    | February 9, 2024 | Refreshed                                         | Benito Taguibao Jr.   | Mel Nagal           | Carrie Nelson                   |
| V1.3    | March 13, 2024   | Updated: Template; Frequency of data destruction; | Benito Taguibao Jr.   | Mel Nagal           | Carrie Nelson                   |
| V1.4    | January 30, 2025 | Reviewed / Refreshed / No changes                 |                       | Benito Taguibao Jr. | Mel Nagal                       |